

IN THE [COURT THAT ENTERED THE JUDGMENT – CONFIRM THE COURT NAME FROM THE COURT RECORD],
STATE OF HAWAII

STATE OF HAWAII,
Plaintiff,

v.

JOHN DOE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

MOTION FOR ORDER EXPUNGING THE RECORD OF CONVICTION (FIRST-TIME PROPERTY OFFENDER)
PURSUANT TO HRS § 706-622.9, WITH DECLARATION UNDER HAW. R. PENAL P. 47(d)

STATUTORY AUTHORITY

HRS § 706-622.9 – Conviction expungement for a first-time property offender. The grant is mandatory once the statutory findings are made – 'shall issue ... provided that (a) through (d)' – but two of the four provisos are findings the court makes, so the outcome is not mechanical; where the court cannot make the paragraph (b) finding it may nevertheless order expungement on finding successful completion of a substance abuse treatment program. This relief must not be described as automatic.
Haw. R. Penal P. 47(a) – 'An application to the court for an order shall be by motion' – the stage-one vehicle is a written motion in the participant's own existing penal case, filed in the court that sentenced or convicted them; the Rules of Penal Procedure govern because Rule 54(a) applies them to all penal proceedings.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court of the State of Hawaii that entered the judgment in the underlying penal case (the First Circuit (synthetic sample venue)), where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this motion occurred in the First Circuit (synthetic sample venue), State of Hawaii.

II. PARTIES

3. Defendant is JOHN DOE, whose address is 1000 Sample Street, Honolulu, HI 96813.
4. Plaintiff is the State of Hawaii.

III. FACTS AND CASE HISTORY

5. On or about 01/10/2021, Defendant was charged with Theft in the fourth degree (synthetic sample property offence) by Sample City Police Department (synthetic).
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. On 06/15/2021, the matter was resolved with the following disposition: Convicted; sentence completed (synthetic sample disposition).
8. The offense grade was: Petty misdemeanor (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for expungement on the following basis: first-time property

offender expungement under HRS § 706-622.9 (Defendant states this was Defendant's first property offence and the sentence is complete).

10. Defendant states this was Defendant's first property offence (synthetic sample answer).

11. Defendant states the sentence was completed on the date stated above and reads the case number and sentencing date from Defendant's own court record (synthetic sample answer).

12. Defendant understands that the court must make the statutory findings and that this relief is not automatic.

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

(a) Grant this Motion and enter an Order directing the expungement of the record of conviction in this case in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, declare that the statements made in this motion are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to the penalty of law applicable to false statements in an unsworn declaration under Haw. R. Penal P. 47(d).

JOHN DOE
1000 Sample Street, Honolulu, HI 96813

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Haw. R. Penal P. 49(a): all written submissions to the court shall be served upon each of the parties promptly after filing. The prosecuting attorney is a party to the underlying penal case and is served under that rule. Proof of service is required by Haw. R. Penal P. 49(c), so a certificate of service is part of the stage-one filing.

I certify that on _____, I served a copy of this Motion upon the prosecuting attorney (a party to the underlying penal case, served under Haw. R. Penal P. 49(a)) at the following address:

[PROSECUTING ATTORNEY ADDRESS – CONFIRM WITH THE CLERK OF THE SENTENCING COURT]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

PROPOSED ORDER

IN THE [COURT THAT ENTERED THE JUDGMENT – CONFIRM THE COURT NAME FROM THE COURT RECORD],
STATE OF HAWAII

STATE OF HAWAII v. JOHN DOE

DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the
Motion filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The court that entered the judgment and the Hawaii Criminal Justice Data Center, Sample
City Police Department (synthetic), and all other criminal justice agencies with records
pertaining to this matter are hereby directed to expunge all records relating to the
above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this motion:

- Certificate of Service
- Proposed Order Expunging the Record of Conviction (for the court's signature)

Prepared by defendant using LegalEase RCAP. This is not an official court form.